

B. Manjunath vs Smt. Jayasudha @ Sudha on 12 July, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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NC: 2023:KHC:24125-DB
MFA No.6222 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 12TH DAY OF JULY, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.6222 OF 2017 (MC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

1. B. MANJUNATH
S/O LATE S. BHYRAVAIAH
AGED ABOUT 46 YEARS
R/AT C/O. SHIVANANJAPPA ADVOCATE
NEW EXTENSION
OPPOSITE TO AGRICULTURE DEPARTMENT
OFFICE, MALAVALLI TOWN
MANDYA DISTRICT-571 430.

NOW WORKING AT FDA
IN THE OFFICE OF SUPERINTENDENT
OF POLICE, MANDYA-571 401.

...APPELLANT

(BY SRI. GAVRAV, ADV., FOR
SRI. KEMPARAJU, ADV.,)

AND:

1. SMT. JAYASUDHA @ SUDHA
W/O B. MANJUNATH
D/O M. MAHADEVIAIAH
AGED ABOUT 40 YEARS
R/AT SRIRAM NAGAR
5TH CROSS, KARASAWADI ROAD
MANDYA CITY-571 301.

...RESPONDENT

(RESPONDENT SERVED)

THIS MFA IS FILED U/S 28 OF THE FAMILY COURTS ACT,
AGAINST THE JUDGMENT AND DECREE DATED:18.04.2017
PASSED IN M.C.NO.52/2012 ON THE PRINCIPAL SENIOR CIVIL
JUDGE, CJM, MANDYA, DISMISSING THE PETITION FILED U/S
13(1)(ib) OF HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS
DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal has been filed against the judgment and decree dated 18.04.2017, passed by the trial court by which petition filed under Section 13(1)(ib) of the Hindu Marriage Act, 1955 has been dismissed.

2. Learned counsel for the appellant submits the appellant has instructed that the parties are residing together after the impugned judgment and decree.

In view of the aforesaid submission, nothing survives for adjudication in this appeal.

NC: 2023:KHC:24125-DB Accordingly, the appeal is disposed of.

Sd/-

JUDGE Sd/-

JUDGE SS